CORAM: HER WORSHIP BIANCA GYAMERA-BEEKO MAGISTRATE SITTING AT THE DISTRICT COURT MAMPONG-AKWAPIM ON 2ND DAY OF MAY, 2025.

B9/29/2022

THE REPUBLIC

VRS.

PATRICK DANQUAH

Accused absent.

Chief Inspector Adam Abdul Kareem for the Republic.

JUDGMENT.

On 22nd April, 2022, the prosecution arraigned the accused person before this court, differently constituted, for the following offences.

Count one

Statement of offence: Causing unlawful damage contrary to section 172 of the Criminal Offences Act, 1960 (Act 29)

Particulars of offence: Accused, aged 28, a farmer, on 27th August 2019 at 1:00pm at Ahwerase did break the ceiling of the house of Dr. Kwaku Ofosu Adakwa.

Count two

Statement of offence: Unlawful entry contrary to section 152 of the Criminal Offences Act, 1960 (Act 29).

Particulars of offence: Accused, aged 28, a farmer, on 27th August 2019 at 1:00pm at Ahwerase did enter the house of Dr. Kwaku Ofosu Adakwa with the intent to commit the crime of stealing.

Count three

Statement of offence: Stealing contrary to section 124(1) of the Criminal Offences Act, 1960 (Act 29).

Particulars of offence: Accused, aged 28, a farmer, on 27th August 2019 at 1:00pm at Ahwerase did dishonestly appropriate electrical wire cables valued at GHS22,430.00, property of Dr. Kwaku Ofosu Adakwa.

Plea

The accused pleaded not guilty to counts one, two, and three.

Background and facts.

Per the record of proceedings, on the first day the matter was called in court, the accused person was admitted to bail in the sum of GHS5,000 with two sureties. Subsequently, the matter was adjourned repeatedly. The accused along the line stopped coming to court so the prosecutor applied for the forfeiture of the bail bond on 20th March, 2023. More adjournments followed. On 12th August, 2024, the surety informed the court that the accused was serving a 5-year prison sentence at Nsawam Prison, so the prosecution prayed for time to verify this information. The court obliged. On 22nd August 2024, the prosecution confirmed to the court that the accused was indeed in prison custody. The court therefore struck out the forfeiture proceedings against the surety only for another prosecutor to show up in court on 15th October, 2024 to say that their checks showed the accused had finished serving that 5 years sentence a long time ago. In the circumstances, the court deemed it expedient to proceed with the trial in accordance with Article 19 (3) (a) of the Constitution of Ghana, 1992 which states that "*the trial of a person charged with a criminal offence shall take place in his presence unless he refuses to appear before the court for the trials to be conducted in his presence after he has been duly notified of the trial*'.

These are the facts according to the prosecution. The complainant, Dr Kwaku Ofosu Adakwa, is an IT consultant and resides at Aburi. Accused, Patrick Danquah, aged 28 years, is a farmer and resides at Obosomase. On 27th August at about 1:00pm, witnesses in this case were walking past the complainant's building and saw the accused in the ceiling. They raised an alarm and the accused jumped from the ceiling to the ground and took to his heels. He was pursued and apprehended in a nearby bush. The accused was handed over to the

Aburi police station where a formal complaint was lodged. The accused was arrested and detained for further investigations. Accused denied committing any offences. The police visited the site with the accused and discovered that the ceiling had been damaged. Electrical cables valued at GHS22,430 had been pulled out of the ceiling and hidden in a white sack in the bush near the complainant's house.

Issues.

The following are the issues for determination by this court.

1. Whether the accused is guilty of the offence of causing unlawful damage contrary to section 172 of the Criminal Offences Act, 1960 (Act 29).
2. Whether the accused is guilty of the offence of unlawful entry contrary to section 152 of the Criminal Offences Act, 1960 (Act 29).
3. Whether the accused is guilty of the offence of stealing contrary to section 124(1) of the Criminal Offences Act, 1960 (Act 29).

Evidentiary burden.

Section 15(1) of the Evidence Act, 1975 (Act 323) stipulates that unless and until it is shifted, the party claiming that a person is guilty of crime or wrong doing has the burden of persuasion on that issue. The Supreme Court decision of ***Commissioner of Police v Antwi [1961] GLR 408*** affirms this principle. The prosecution therefore bears the burden of proving the guilt of the accused person in relation to the charges made against them.

The standard of proof required to persuade the court that a crime has been committed, as stipulated in section 11(2) of Act 323, is proof beyond reasonable doubt. In explaining what is required of the prosecution to meet this standard of proof, Justice Afia Serwa Asare-Botwe in the case of **The Republic v Mathias Appiah Bill [2016] DLHC 7654** quoted a portion of the book authored by the learned jurist **S.A. Brobbey** titled **Essentials of the Ghana Law of Evidence** as follows:

"Proof beyond reasonable doubt does not mean that there should be no doubt whatsoever in the case presented by the prosecution. It means that by the end of the trial, the prosecution must prove every

element of the offence or the charge (but not all the facts) and show that the defence is not reasonable …

The consideration for the principle of proof beyond reasonable doubt can be illustrated this way: If there is any element of the charge which is essential for the accused to be convicted, that element should be established to the satisfaction of the trier of facts in such a manner that a reasonable mind could conclude that the accused is guilty of the offence or that the existence of the facts constituting the charge is more probable than its non- existence."

In the case of ***Linda Edzidor & Joshua Edzidor v The Republic [2013] DLCA 3597,*** Sowah, J.A. delivering the judgement of the Court of Appeal explained as follows:

"What is proof beyond reasonable doubt is not defined in the Evidence Act but in Miller vs. Minister of Pensions [1947] 2 All ER 372 which the court referred to in its judgment, Denning J. explained the term as meaning that the evidence against the accused must be so strong as to leave only a remote possibility in his favour which can be dismissed with the sentence "of course it is possible, but not in the least probable". The term does not mean proof beyond a shadow of doubt."

The prosecution is in this case therefore required to prove every element of each of the offences the accused has been charged with to the satisfaction of the court.

Issue 1 - Whether the accused is guilty of the offence of causing unlawful damage contrary to section 172 of the Criminal Offences Act, 1960 (Act 29).

Section 172 of Act 29 states:

(1) A person who intentionally and unlawfully causes damage to property

(a) to a value not exceeding one million cedis or without pecuniary value commits a misdemeanour

(b) To a value exceeding one million cedis commits a second degree felony.

(2) a person who intentionally and unlawfully causes damage to property in a manner which causes, is likely to cause, danger to life commits a first degree felony.

(3) for the purposes of this section, "property" means movable or immovable property.

In the case of **Homenya v the Republic (1992) 2 GLR 305**, Justice Acquah stated the law as follows:

" An accused can only be liable on a charge of Unlawful Damage to property under section 172(1) of the Criminal Code, 1960, Act 29 where the prosecution was able to establish that the accused caused the damage intentionally but also that the damage was caused unlawfully."

Accordingly, the elements that the prosecution must prove are that:

1. the accused has caused the damage intentionally, and
2. the damage was caused unlawfully.

The prosecution adduced evidence in the form of the testimony of Dr Kwaku Ofosu Adakwa and the D/INSPR. David Megbenya as well as photographs (Exhibit B and C1) to prove that damage had been caused to the ceiling of the building in question, and the electrical wires had been tampered with. Their evidence also shows that the damage was caused without the knowledge or consent of the owner of the building and was therefore unlawful.

The prosecution did not lead any evidence to prove that the accused was seen creating the hole in ceiling. However, the statement of the Mrs Grace Honu, who had unfortunately passed away at the time the trial commenced, was tendered into evidence by D/INSPR. David Megbenya. The statement proves that she saw the accused jump from the ceiling. I am satisfied that the evidence before this court leads to the sole conclusion that the accused was the one who caused the damage to the ceiling. But assuming even that the accused came to meet the ceiling already damaged, it is my opinion that even by merely entering the ceiling, the accused also caused damage as it would certainly further deteriorate the state of the ceiling. I am emboldened in my stance by section 173 of Act 29 which states that *damage of a thing also includes an interference of that thing by which expense is rendered necessary in order to render the thing fit for the purposes for which it was used or maintained*.

From the evidence, it can also be inferred that the accused caused the damage intentionally as the act of cutting a hole and or climbing into the complainant's roof could not have happened accidentally.

I therefore find the accused guilty of the offence of causing unlawful damage to the ceiling of the building contrary to section 172 of the Criminal Offences Act, 1960 (Act 29).

Issue 2 - Whether the accused is guilty of the offence of unlawful entry contrary to section 152 of the Criminal Offences Act, 1960 (Act 29).

Section 152 of Act 29 states that "*a person who unlawfully enters a building with the intention of committing a criminal offence in the building commits a second degree felony*".

Section 153 explains that "*a person unlawfully enters a building if that person enters otherwise than in the exercise of a lawful right, or by the consent of any other person able to give the consent for the purposes for which that person enters*."

The prosecution is therefore required to prove that the accused:

1. entered the building of the complainant,
2. that he had neither the consent of the complainant nor any lawful right to enter the building; and
3. that he entered the building with the intention to steal.

It is not in dispute that the accused entered the premises of the complainant. The evidence also shows that the accused did not have the consent of the complainant to be in the premises, nor did he have any lawful right to be there. The evidence of Peter Honu and the D/INSPR. David Megbenya to prove that the accused took to his heels when he was spotted in the premises of the complainant. The accused's explanation for running away as captured in his statement to the Police (Exhibit E) was that he was heading to the bush when he was spotted by the late Mrs. Honu and her son, and that they started shouting thief, thief, so he became afraid and began to run. The evidence of the prosecution however shows that the accused was not merely walking by the premises. Rather, he was spotted in the ceiling. I therefore do not believe the accused's explanation. I find that the accused entered the

building of the complainant and that he had neither the consent of the complainant nor any lawful right to enter the building.

The evidence before this court also shows that the accused person caused unlawful damage to the ceiling of the complainant's building, and therefore the accused not only had the intention to commit a crime, but he did in fact commit a crime. I therefore find the accused guilty of the offence of unlawful entry contrary to section 172 of Act 29.

Issue 3 - Whether the accused is guilty of the offence of stealing contrary to section 124(1) of the Criminal Offences Act, 1960 (Act 29).

Section 124(1) states that *"a person steals who dishonestly appropriates a thing of which that person is not the owner."*

The essential ingredients of the crime of stealing which the prosecution ought to prove beyond reasonable doubt therefore are that:

a) the subject matter of the theft that is the electrical cables belong to someone other than the accused;

a) the accused appropriated the cables; and

b) he did so dishonestly.

The evidence before this court is that the electrical cables the accused is said to have stolen belong to the complainant. I therefore find that the accused is not the owner of the cables he is accused of stealing.

In **John Cobbina v the Republic [2020] DLSC8800**, the Supreme court adopted the following definition of appropriation as given by the Oxford Advanced Learner's Dictionary. It defines appropriation as "the act of taking something which belongs to somebody else, especially without permission". **Section 122** of the **Criminal Offences Act 1960, Act 29** explains what constitutes an act of appropriation.

> "Acts which amount to an appropriation
>
> (1) An appropriation of a thing by a trustee means a dealing with the thing by the trustee, with the intent of depriving a beneficiary of the benefit of the right or interest in the thing, or in its value or proceeds, or a part of that thing.

(2) An appropriation of a thing in any other case means any moving, taking, obtaining, carrying away, or dealing with a thing, with the intent that a person may be deprived of the benefit of the ownership of that thing, or of the benefit of the right or interest in the thing, or in its value or proceeds, or part of that thing."

There is no direct evidence that the accused was seen with the cables. The cables were discovered hidden near the complainant's house after the accused had been apprehended and a search conducted. The prosecution's evidence that the accused appropriated the cables is therefore circumstantial. The Supreme Court in the case of **Frimpong Vrs the Republic [2012] GHASC 3 (18 January 2012)** restated its holding in the **State v Anani Fiadzo [1961] GLR 416** on the issue of circumstantial evidence as follows:

"Presumptive or circumstantial evidence is quite usual as it is rare to prove an offence by evidence of eye-witnesses and inference from the facts may prove the guilt of the appellant. A presumption from circumstantial evidence should be drawn against the appellant only when that presumption follows irresistibly from the circumstances proved in evidence, and in order to justify the inference of guilt the inculpatory facts must be incompatible with the innocence of the appellant, and incapable of explanation upon any other reasonable hypothesis other than guilt. A conviction must not be based on probabilities or mere suspicion."

The evidence before this court is that the accused was seen in the ceiling of the complainant's house where the cables had been placed. The cables of the had been cut, pulled out, and hidden in bush near that very house. I am therefore satisfied that the circumstances point irresistibly to the conclusion that it was the accused who appropriated the cables. I accordingly find that the accused appropriated the cables.

Section 120 of the Criminal Offences Act, 1960 Act 29 defines dishonest appropriation as follows:

(1) "An appropriation of a thing is dishonest

(a) if it is made with an intent to defraud, or

(b) if it is made by a person without a claim of right, and with a knowledge or belief that the appropriation is without the consent of a person for whom that person is

trustee or who is owner of the thing or that the appropriation would, if known to the other person, be without the consent of the other person. "

The evidence before this court proves that the accused did not have the right to take the cables and neither did he have the consent of the complainant to take them. I therefore find that the appropriation of the cables by the accused was dishonest.

From my analysis, I am satisfied that the prosecution has succeeded in proving beyond reasonable doubt that the accused is guilty of stealing the electrical cables. The accused is hereby found guilty of the offence of stealing contrary to section 124(1) of Act 29.

Conviction

I hereby convict the accused, Patrick Danquah, on:

1. Count one: causing unlawful damage contrary to section 172 of the Criminal Offences Act, 1960 (Act 29).
2. Count two: unlawful entry contrary to section 152 of the Criminal Offences Act, 1960 (Act 29).
3. Count three: stealing contrary to section 124(1) of the Criminal Offences Act, 1960 (Act 29).

Sentence

In arriving at the sentence, this court is guided by the following holding of the Supreme Court in **John Cobinna v The Republic** (supra);

> On the question whether the trial court and the Court of Appeal ought to give reasons for imposing the maximum sentence on the appellant for both offences; it is trite that a trial court has the discretion to determine the length of sentence. See **Kwashie v The Republic [1971] 1 GLR 488** where the Court of Appeal per Azu Crabbe JA said: "*The determination of the length of sentence within the statutory maximum sentence is a matter within the discretion of the trial court, and the courts always act upon the principle that the sentence imposed must bear some relation to the gravity of the offence*"

The courts however do not act arbitrarily in the exercise of such discretion. Specific factors are taken into consideration depending on the circumstances of each case. The court in the **Kwashie v the Republic** case numerated the factors that needed to be considered as follows: "*In determining the length of sentence, the factors which the trial judge is entitled to consider are:* ***(1) the intrinsic seriousness of the offence; (2) the degree of revulsion felt by law-abiding citizens of the society for the particular crime; (3) the premeditation with which the criminal plan was executed; (4) the prevalence of the crime within the particular locality where the offence took place, or in the country generally; (5) the sudden increase in the incidence of the particular crime; and (6) mitigating or aggravating circumstances such as extreme youth, good character and the violent manner in which the offence was committed***."

The convict is not before the court for his plea in mitigation to be taken. The court however notes that the prosecution says the convict is not known and has in fact never been in prison custody contrary to what they themselves told this court earlier on. The court has also taken into consideration the fact that the nature of the offences committed by the convict required premeditation. The fact of the prevalence of and increase in incidence of such offences within this jurisdiction has also been noted. The convict is therefore sentenced as follows:

1. On count one, to nine months in prison with hard labour.
4. On count two, to six months in prison with hard labour.
5. On count three to fifteen months in prison with hard labour.

Restitution Order.

The convict is ordered to pay the complainant GHS6,000 as compensation for the damage caused to the ceiling and the electrical cables. The prosecution is ordered to return the electrical cables retrieved during the investigations to the complainant.

SGD.

H/W Bianca Gyamera-Beeko